

will also be stayed.

If the lawsuit resumes, then court will then provide a new deadline by which Plaintiff must file an amended Complaint.

**Disposition**

Defendant's Demurrer is sustained.

Plaintiff to begin the arbitration process.

The Case will be stayed pending arbitration.

A control date of 1/19/27, 8:30am, will be scheduled to ascertain the posture of arbitration.

Defendant to file Order.

Court to notify parties of 1/19/27, date.

**9. 9:00 AM CASE NUMBER: L25-14683**

**CASE NAME: VAN DE POEL & LEVY LLP VS. ANIL YADAV**

**\*HEARING ON MOTION IN RE: FOR MOTION FOR ORDER AUTHORIZING ALTERNATIVE SERVICE OF SUMMONS ON DEFENDANT ANIL YADAV**

**FILED BY: VAN DE POEL & LEVY LLP**

**\*TENTATIVE RULING:\***

This request should be submitted ex parte.

It will be dropped from this calendar.

**10. 9:00 AM CASE NUMBER: L25-15018**

**CASE NAME: CAPITAL ONE N.A. VS. WAYNE GARNETT**

**\*HEARING ON MOTION IN RE: TO VACATE DISMISSAL AND ENTER JUDGMENT UNDER TERMS OF STIPULATED SETTLEMENT**

**FILED BY: CAPITAL ONE N.A.**

**\*TENTATIVE RULING:\***

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

### Analysis

Mail service was completed at an address for the Defendant where he was personally served with notice of the Summons and Complaint.

Though Defendant never filed an Answer, he did enter into a Stipulation with Plaintiff on this very matter, showing, by a preponderance of the evidence, that she was aware of this litigation. Defendant has made no effort to file a change of address with the court. Thus, the court finds that Defendant was properly noticed of this Motion.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$3,571.68, plus costs, and less any credits for payments received.

The agreement was filed with the court.

The case was then dismissed.

The Defendant made payments of \$142.

Costs are \$583.61.

### Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$4,013,29.

Plaintiff to file order on Motion, as well as submit Judgment.

**11. 9:00 AM CASE NUMBER: L26-00081**

**CASE NAME: CROWN ASSET MANAGEMENT LLC VS. DONPREYEL MARTIN**

**\*HEARING ON MOTION IN RE: STAY OF PROCEEDINGS PENDING ARBITRATION**

**FILED BY:**

**\*TENTATIVE RULING:\***

Defendant filed a Motion, on 2/24/26, to stay proceedings pending arbitration. The Motion was originally scheduled for hearing on 5/5/26, yet on that day, the court found that Defendant had not provided notice of the Motion or hearing to Plaintiff, and continued the Motion to 7/28/26.

As of this writing, there is still no evidence that Defendant has provided any notice to Plaintiff.

### **Disposition**

This Motion will be dropped.